

The Tamil Nadu Aided Institutions Prohibition of Transfers of Property) (Extension To Pudukkottai) Act, 1961

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The Tamil Nadu Aided Institutions Prohibition of Transfers of Property) (Extension To Pudukkottai) Act, 1961

TAMILNADU

India

The Tamil Nadu Aided Institutions Prohibition of Transfers of Property) (Extension To Pudukkottai) Act, 1961

Act 54 of 1961

Published on 4 March 1962

Commenced on 4 March 1962

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The Tamil Nadu Aided Institutions Prohibition of Transfers of Property) (Extension To Pudukkottai) Act, 1961

Tamil Nadu Act

54 of 1961

Received the assent of the President on 4th March, 1962 and Published in the Port St. George Gazette, Part IV, Section 4, Page 99, dated 14th March, 1962.

An Act to extend the [Tamil Nadu]

[Substituted for the words 'Madras' by the Tamil Nadu Adaptation of Laws Order, 1969, as amended by It, Tamil Nadu Adaptation of Laws (Second Amendment) Order, 1969.]

Aided Institutions (Prohibition of Transfers of Property) Act, 1948 ([Tamil Nadu]

[Substituted for the words 'Madras' by the Tamil Nadu Adaptation of Laws Order, 1969, as amended by It, Tamil Nadu Adaptation of Laws (Second Amendment) Order, 1969.]

Act XIV of 1948) to the merged territory of Pudukkottai.

Whereas it is expedient to extend the Tamil Nadu Aided Institution (Prohibition of Transfers of Property) Act, 1948 (Tamil Nadu Act XIV of 1948) to the merged territory of Pudukkottai;

Be it enacted in the Twelfth Year of the Republic of India as follows:-

1.

Short title and commencement.

(1)

This Act may be called the Tamil Nadu Aided Institution (Prohibition of Transfers of Property) (Extension to Pudukkottai Act, 1961.

(2)

It shall come into force on such date as the State Government may, by notification, appoint.

2.

Extension of Tamil Nadu Act XIV of 1948 to the merged territory of Pudukkottai.

- The [Tamil Nadu]

[Substituted for the words 'Madras' by the Tamil Nadu Adaptation of Laws Order, 1969, as amended by It, Tamil Nadu Adaptation of Laws (Second Amendment) Order, 1969.]

Aided Institutions (Prohibition of Transfers of Property) Act, 1948 [Tamil Nadu]

[Substituted for the words 'Madras' by the Tamil Nadu Adaptation of Laws Order, 1969, as amended by It, Tamil Nadu Adaptation of Laws (Second Amendment) Order, 1969.]

Act (XIV of 1948) and any rule, order, notifications, or other instrument having the force of law made thereunder hereinafter referred to in this Act as the [Tamil Nadu]

[Substituted for the words 'Madras' by the Tamil Nadu Adaptation of Laws Order, 1969, as amended by It, Tamil Nadu Adaptation of Laws (Second Amendment) Order, 1969.]

law and in force on the date of the commencement of this Act in the Tiruchirapalli district except in the merged territory of Pudukkottai are hereby extended to, and shall be in force; in, the merged territory of Pudukkottai.

3.

Repeal of corresponding law.

- Any law corresponding to the [Tamil Nadu]

[Substituted for the words 'Madras' by the Tamil Nadu Adaptation of Laws Order, 1969, as amended by It, Tamil Nadu Adaptation of Laws (Second Amendment) Order, 1969.]

law in force in the merged territory of Pudukkottai, immediately before the date of the commencement of this Act (hereinafter in this Act referred to as the corresponding law), shall on the date of the commencement of this Act stand repealed.

4.

Savings.

(1)

The repeal by section 3 of the corresponding law shall not affect-

(a)

the previous operation of the corresponding law or anything done or duly suffered thereunder; or

(b)

any right, privilege, obligation or liability acquired, accrued or incurred, under the corresponding law; or

(c)

any penalty, forfeiture or punishment incurred in respect of any offence committed against the corresponding law; or

(d)

any investigation, legal proceeding or remedy in respect of any such right privilege, obligation, liability, penalty, forfeiture or punishment as aforesaid, and any such investigation, legal proceeding or remedy may be instituted, continued or enforced and any such penalty, forfeiture or punishment may be imposed as if this Act had not been passed.

(2)

Subject to the provisions of sub-section (1), anything done or any action taken including any appointment or delegation

made, notification or direction issued, rule, regulation or form framed, certificate granted or registration effected under the corresponding law shall be deemed to have been done or taken under the [Tamil Nadu]

[Substituted for the words 'Madras' by the Tamil Nadu Adaptation of Laws Order, 1969, as amended by It, Tamil Nadu Adaptation of Laws (Second Amendment) Order, 1969.]

law and shall continue to have effect accordingly, unless and until superseded by anything done or any action taken under the [Tamil Nadu]

[Substituted for the words 'Madras' by the Tamil Nadu Adaptation of Laws Order, 1969, as amended by It, Tamil Nadu Adaptation of Laws (Second Amendment) Order, 1969.]

law.

5.
Construction of reference to laws not in force in the merged territory of Pudukkottai.

- Any reference to the corresponding law in any law which continues to be in force in the merged territory of Pudukkottai after the date of the commencement of this Act, shall, in relation to that territory, be construed as a reference to the [Tamil Nadu]

[Substituted for the words 'Madras' by the Tamil Nadu Adaptation of Laws Order, 1969, as amended by It, Tamil Nadu Adaptation of Laws (Second Amendment) Order, 1969.]

law corresponding to the law so repealed.

6.
Powers of Courts and other authorities for purposes of facilitating application of laws.

- For the purpose of facilitating the merged territory of Pudukkottai, any Court or other authority may construe such law with such alterations not affecting the substance as may be necessary or proper to adapt it to the matter before the Court or other authority.

7.
Power to remove difficulties.

(1)
If any difficulty arises in giving effect to the provisions of this Act, or of any [Tamil Nadu]

[Substituted for the words 'Madras' by the Tamil Nadu Adaptation of Laws Order, 1969, as amended by It, Tamil Nadu Adaptation of Laws (Second Amendment) Order, 1969.]

law as extended to the merged territory of Pudukkottai by this Act, the State Government, as occasion may by order, do anything which appears to them necessary for purposes of removing the difficulty.

(2)
Every order issued under sub-section (1), shall as soon as possible after it is issued be placed on the table of [the Legislative Assembly]

[Substituted for 'both Houses of the Legislature' by the Tamil Nadu Adaptation of Laws Order, 1987.]
, and if, before the expiry of the session in which it is placed or the next session, [the Legislative Assembly agrees]
[Substituted for the words 'both Houses agree' by the Tamil Nadu Adaptation of Laws Order, 1987.]

in making any modification in any such order or [the Legislative Assembly agrees]
[Substituted for the words 'both Houses agree' by the Tamil Nadu Adaptation of Laws Order, 1987.]
that the order should not be issued the order shall thereafter have effect in such modified form or be of no effect, as the case may be, so however that any such modification or annulment shall be without shall be without prejudiced to the validity of anything previously done under that order.

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